

Syllabus

reinforced that precedent over the following six decades, see, *e. g.*, *Puerto Rico v. Sánchez Valle*, 579 U. S. 59. Pp. 685–690.

(c) Gamble claims that this Court’s precedent contradicts the common-law rights that the Double Jeopardy Clause was originally understood to engraft onto the Constitution, pointing to English and American cases and treatises. A departure from precedent, however, “demands special justification,” *Arizona v. Rumsey*, 467 U. S. 203, 212, and Gamble’s historical evidence is too feeble to break the chain of precedent linking dozens of cases over 170 years. This Court has previously concluded that the probative value of early English decisions on which Gamble relies was “dubious” due to “confused and inadequate reporting.” *Bartkus*, 359 U. S., at 128, n. 9. On closer inspection, that assessment has proved accurate; the passing years have not made those early cases any clearer or more valuable. Nor do the treatises cited by Gamble come close to settling the historical question with enough force to meet his particular burden. His position is also not supported by state-court cases, which are equivocal at best. Less useful still are the two federal cases cited by Gamble—*Houston v. Moore*, 5 Wheat. 1, which squares with the dual-sovereignty doctrine, and *United States v. Furlong*, 5 Wheat. 184, which actually supports it. Pp. 691–707.

(d) Gamble’s attempts to blunt the force of *stare decisis* here do not succeed. He contends that the recognition of the Double Jeopardy Clause’s incorporation against the States washed away any theoretical foundation for the dual-sovereignty rule. But this rule rests on the fact that only same-sovereign prosecutions can involve the “same offence,” and that is just as true after incorporation as before. Gamble also argues that the proliferation of federal criminal laws has raised the risk of successive prosecutions under state and federal law for the same criminal conduct, thus compounding the harm inflicted by precedent. But this objection obviously assumes that precedent was erroneous from the start, so it is only as strong as the historical arguments found wanting. In any case, eliminating the dual-sovereignty rule would do little to trim the reach of federal criminal law or prevent many successive state and federal prosecutions for the same criminal conduct, see *Blockburger v. United States*, 284 U. S. 299. Pp. 707–710.

694 Fed. Appx. 750, affirmed.

ALITO, J., delivered the opinion of the Court, in which ROBERTS, C. J., and THOMAS, BREYER, SOTOMAYOR, KAGAN, and KAVANAUGH, JJ., joined. THOMAS, J., filed a concurring opinion, *post*, p. 710. GINSBURG, J., *post*, p. 726, and GORSUCH, J., *post*, p. 737, filed dissenting opinions.